

26STCP01223 26STCP01223

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-28

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Case Number: 26STCP01223 Hearing Date: July 28, 2026 Dept: 25

HEARING DATE: Tues., July 28, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Twin

Oaks Mobile Home Park LP v. Elliot PET. FILED: 03-24-26

CASE NUMBER: 26STCP01223

NOTICE: OK

PROCEEDINGS: VERIFIED

PETITION FOR INJUNCTIVE RELIEF PURSUANT TO CIV. CODE § 798.88

MOVING PARTY: Petitioner

Twin Oaks Mobile Home Park LP

RESP. PARTY: None

PERMANENT

INJUNCTION

(Civ.

Code § 798.88)

TENTATIVE RULING:

The Court GRANTS Twin Oaks

Mobile Home Park LP's petition for permanent injunction.

Twin Oaks is to give
notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 22, 2026 ☐ Late ☒
None

REPLY: None
filed as of July 22, 2026 ☐ Late ☒
None

ANALYSIS:

Robert

R. Elliot lives in Twin Oaks Mobile Home Park.

After repeated violations of Twin Oaks's park rules, Twin Oaks filed this petition, pursuant to Civil Code section 798.88, to enjoin Elliot permanently from continuing the violations.

Twin Oaks requests an order enjoining Elliot from violating its rules 2, 6(A), 6(B), 6(D), and 9, and requiring Elliot to remove all unapproved occupants from the premises who have stayed beyond the guest grace period; to stop allowing individuals to reside on the premises for a period exceeding 20 consecutive days or 30 days in a calendar year; to stop allowing unapproved guests to reside on the premises; to stop allowing individuals to reside on the premises who are not age-approved; to remove all improperly stored items from the premises and maintain the premises in a clean, safe, and orderly condition at all times; to immediately remove all animal feces from the premises and maintain the premises in a sanitary condition free from offensive odors and health hazards; and to abide by all park rules and regulations and the terms of the rental agreement.

The Mobilehome

Residency Law gives park management an injunctive remedy for violations of “reasonable” park rules and regulations. (Civ. Code, § 798.88.) At the time of the hearing, the court shall issue an injunction not to exceed three years if it finds by clear and convincing evidence the existence of a continuing or recurring violation of a “reasonable rule or regulation.” (Civ. Code, § 798.88, subd. (d).)

Twin

Oaks's petition is supported by a copy of the rental agreement from August 2018; the park rules in effect; four written notices and proofs of service from May and August of 2025; and photographs taken in February 2026 depicting the continued violations of the rules. Twin

Oaks contends the violations are ongoing and continue to exist. Based on the foregoing, the Court finds the petition is supported by clear and convincing evidence of Elliot's violations of Twin Oaks's reasonable park rules and regulations. (Civ. Code, § 798.88, subd. (d).) Elliot has not opposed the petition showing why an injunction should not be issued against him.

Accordingly, the Court GRANTS Twin Oaks's petition.

Twin Oaks is to give notice.